IT is hereby notified that the Minister of Public Service, Labour and Social Welfare has, in terms of section 80(1) of the Labour Act [*Chapter 28:01*], published the Collective Bargaining Agreement as set out in the Schedule. This agreement was registered in terms of section 79 of the Labour Act [*Chapter 28:01*].

SCHEDULE

This further agreement, made and entered into in accordance with the provisions of the Labour Act [*Chapter 28:01*], between the Chamber of Mines of Zimbabwe (hereinafter referred to as the employers' organisation), on the one part, and the Associated Mine Workers Union of Zimbabwe (hereinafter referred to as "the trade union"), on the other part, being parties to the National Employment Council for the Mining Industry, to amend the Collective Bargaining Agreement: Mining Industry (General Conditions), 1990, published in Statutory Instrument 152 of 1990 (hereinafter referred to as "the principal agreement") shall be read as one with the Principal Agreement.

The National Employment Council for the Mining Industry have today, 13th March, 2023, reached an agreement to raise the NEC minimum rates/earnings for the Mining Industry by—

1. RATES OF PAY

The Principal Agreement Statutory Instrument 152 of 1990 is amended by the deletion of Clause 1(a) and 1(b) of Schedule E and the substitution of—

"1(a) Subject to the provisions of paragraph 1(b) the basic minimum earnings payable to employees with effect from 1st January, 2023 to 31st December, 2023, shall be as per the attached Schedules.

The agreement carries an Exemption Clause as stipulated in the Principal Agreement, Statutory Instrument 152 of 1990, Clause 6 (Exemptions, Variations and Savings).

Those employers who are able to pay more than the NEC minimums are encouraged to do so.

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The dollar value principle will apply.

NATIONAL EMPLOYMENT COUNCIL FOR THE MINING INDUSTRY

RATES OF PAY FROM 1ST JANUARY, 2023 TO 31ST DECEMBER, 2023

Grade	*Minimum per month as at 31/12/2022* ZWL	*New minimum per month as at 01/01/2023* USD	*Portion of minimum to be paid in* USD *as at 01/01/2023* USD	*Portion of* USD *minimum payable in* ZWL *at the prevailing auction rate on the date of payment* USD	*New minimum per shift* USD	*Dollar Value increase* USD
1	217,299,84	355,00	230,75	124,25	13,65	14,99
2	219,035,13	357,83	232,59	125,24	13,76	15,11
3	219,929,52	359,30	233,54	125,75	13,82	15,17
4	223,791,87	365,61	237,64	127,96	14,06	15,43
5	230, 470,16	376,52	244,74	131,78	14,48	15,89
6	241,289,74	394,19	256,22	137,97	15,16	16,64
7	251,171,65	410,34	266,72	143,62	15,78	17,32
8	273,565,95	446,92	290,50	156,42	17,19	18,87
9	331, 848,79	542,14	352,39	189,75	20,85	22,89
10	372,050,94	607,81	395,08	212,74	23,38	25,66
11	435,898,51	712,12	462,88	249,24	27,39	30,06
12	472,794,25	772,40	502,06	270,34	29,71	32,61
13	503,994,78	823,37	535,19	288,18	31,67	34,76

Foreign currency generating companies shall pay the new minimum wages in both USD and ZWL portions as provided for above.

Non-foreign currency generating companies may be exempted from the requirement to pay in dual currency and shall pay the new monthly USD minimum wages as provided for above at the prevailing auction rate on the date of payment.

2. SERVICE INCREMENTS

The basic minimum earnings, prescribed in paragraph 1(a) shall be increased as specified hereunder in respect of employees whose total length of service with the same employer amounts to two or more years.

Employees whose total length of service with the same employer exceeds—

Service Years	Percentage Increase	Accumulated Percentage Increase
After 2 years	2%	2%
After 3 years	1%	3%
After 4 years	1%	4%
After 10 years	2%	6%
After 15 years	2%	8%
After 20 years	2%	10%
After 25 years	2%	12%

Note: Employers are to ensure that the following deductions are implemented and shortfalls back-dated to 1st January, 2023—

(1) Mining Industry Pension Fund (M.I.P.F).

(2) NEC dues 0.3% of grade minimum.

(3) Remittances to the NEC and AMWUZ shall be paid using a dual currency system which resonates with the actual wages earned by the employees, that is in both USD and RTGS components.

(4) AMWUZ subscriptions for members shall be 3% of an employee's basic salary until further notice.

SERVICE INCREMENT RATES FROM 1ST JANUARY, 2023 TO 31ST DECEMBER, 2023

The rates of service increments shall be as follows—

GRADE	BASIC WAGE ZWL	AFTER 2 YRS 2% (ZWL)	AFTER 3 YRS 3% (ZWL)	AFTER 4 YRS 4% (ZWL)	AFTER 10YRS 6% (ZWL)	AFTER 15 YRS 8% (ZWL)	AFTER 20 YRS 10%(ZWL)	AFTER 25 YRS 12%(ZWL)
1	355,00	7,10	10,65	14,20	21,30	28,40	35,50	42,60
2	357,83	7,16	10,74	14,31	21,47	28,63	35,78	42,94
3	359,30	7,19	10,78	14,37	21,56	28,74	35,93	43,12
4	365,61	7,31	10,97	14,62	21,94	29,25	36,56	43,87
5	376,52	7,53	11,30	15,06	22,59	30,12	37,65	45,18
6	394,19	7,88	11,83	15,77	23,65	31,54	39,42	47,30
7	410,34	8,21	12,31	16,41	24,62	32,83	41,03	49,24
8	446,92	8,94	13,41	17,88	26,82	35,75	44,69	53,63
9	542,14	10,84	16,26	21,69	32,53	43,37	54,21	65,06
10	607,81	12,16	18,23	24,31	36,47	48,63	60,78	72,94
11	712,12	14,24	21,36	28,48	42,73	56,97	71,21	85,45
12	772,40	15,45	23,17	30,90	46,34	61,79	77,24	92,69
13	823,37	16,47	24,70	32,93	49,40	65,87	82,34	98,80

Foreign currency generating companies shall pay the new minimum wages in both USD and RTGS portions provided for above.

Non-foreign currency generating companies are excluded from the requirement to pay in dual currency and shall pay the new monthly USD minimum wages as provided for above at the prevailing auction rate on the date of payment.

Such increases shall be reflected seperately on paysheets and payslips and will continue to form part of an employee's basic earnings.

Provided that employers may at their discretion, and when they are paying in excess of the minimum wage still pay a service increment based on the actual wage.".

Declaration

The Employer's Organisation and the Trade Union, having arrived at the agreement set forth herein, the undersigned officers of the Council hereby declare that the foregoing is the agreement arrived at, and affix their signatures thereto.

Signed at Harare this 13th day of March, 2023.

M.C. KARE,
Chairman,
National Employment Council for the Mining Industry.

S. PAPIAS,
Acting President,
Associated Mine Workers Union of Zimbabwe.

T. GONO,
Vice President,
Chamber of Mines of Zimbabwe.

T. S. KABOTE,
General Secretary,
National Employment Council for the Mining Industry.

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